

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7961 amending:

1° the amended law of December 19, 2002 concerning the trade and companies register as well as the accounting and annual accounts of companies;

2° the amended law of January 13, 2019 establishing a Register of Beneficial Owners

Deliberation No. 104/AV44/2023 of December 15, 2023

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "Member States consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such legislative proposal, which relates to processing."

The European Data Protection Board (hereinafter referred to as the "EDPB") further specifies that for any limitation on the rights of data subjects adopted at the Member State level, the data protection supervisory authority must be consulted before the adoption of such a measure by the national parliament.

By letter dated January 20, 2022, the Minister of Justice invited the National Commission to express its opinion on the draft law amending 1° the amended law of December 19, 2002 concerning the trade and companies register as well as the accounting and annual accounts of companies; 2° the amended law of January 13, 2019 establishing a Register of Beneficial Owners (hereinafter referred to as the "draft law").

1 European Data Protection Board (EDPB), Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021, paragraph 68 (https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-102020-restrictions-under-article-23-gdpr_fr)

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On November 22, 2022, the Court of Justice of the European Union delivered a judgment in the joined cases C-37/20 (Luxembourg Business Registers) and C-601/20 (Sovim) invalidating the provision of Directive (EU) 2018/843 of the European Parliament and of the Council of May 30, 2018, amending Directive (EU) 2015/849 on the prevention of the use of the financial system for the purposes of money laundering or terrorist financing (hereinafter "Directive 2018/843") which provided that Member States must ensure that information on the beneficial owners of companies and other legal entities established on their territory is accessible in all cases to any member of the general public. The Court found that public access to information on beneficial owners constituted a serious interference with the fundamental rights enshrined in Articles 7 and 8 of the Charter of Fundamental Rights of the European Union. After establishing that the interference with these rights resulting from public access to information on beneficial owners was not limited to what is strictly necessary, the Court indicated regarding the proportionality of the measure in relation to the general interest objective pursued: "85. On the other hand, compared to a regime such as that of Article 30, paragraph 5, of Directive 2015/849 in its version prior to the entry into force of Directive 2018/843, which provided, in addition to access by competent authorities and certain entities, access to any person or organization able to demonstrate a legitimate interest, the regime introduced by the latter directive, providing for public

access to information on beneficial owners, represents a considerably more serious infringement of the fundamental rights guaranteed by Articles 7 and 8 of the Charter, without this aggravation being offset by any potential benefits that could result from this latter regime compared to the former, in terms of combating money laundering and terrorist financing (see, by analogy, judgment of August 1, 2022, Vyriausioji tarnybinės etikos komisija, C-184/20, EU:C:2022:601, paragraph 112).

86. In these circumstances, the optional provisions of Article 30, paragraphs 5 bis and 9, of the amended Directive 2015/849, which allow Member States, respectively, to condition the availability of information on beneficial owners on online registration and to provide, in exceptional circumstances, for derogations from public access to this information, do not, by themselves, demonstrate a balanced weighting between the general interest objective pursued and the fundamental rights enshrined in Articles 7 and 8 of the Charter, nor the existence of sufficient safeguards allowing the persons concerned to effectively protect their personal data against the risks of abuse.”

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Following the publication of this judgment by the Court of Justice of the European Union, public access to the Register of Beneficial Owners was suspended in Luxembourg. On December 16, 2022, access to the RBE was restored for professionals referred to in Article 2 of the amended law of November 12, 2004, on the fight against money laundering and terrorist financing who requested it from the economic interest grouping Luxembourg Business Registers (hereinafter "LBR"). Access was also restored for representatives of the press,

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this access being managed by the Luxembourg Press Council within the framework of an agreement with LBR concluded on December 20, 2022. In a press release dated December 21, 2022, the Ministry of Justice announced that it was preparing amendments to the amended law of January 13, 2019 establishing a Register of Beneficial Owners so that the text would be fully in line with the text of Directive (EU) 2015/849 of May 20, 2015 as amended following Directive 2018/843 and the ruling of the CJEU. On March 31, 2023, the CNPD notified the initial draft law. It emerged from this opinion that “[t]he CNPD welcomes the fact that amendments are currently being prepared as Article 12 of the RBE law, following the declaration of invalidity by the CJEU, is clearly non-compliant with fundamental rights relating to the protection of privacy. Pending the submission of these amendments, it reserves the question of access to the information contained in the RBE and does not express an opinion on all the provisions related to it as they currently appear in the draft texts.” On June 21, 2023, the Justice Commission of the Chamber of Deputies adopted a series of amendments to the draft law to take into account the aforementioned ruling and also concerning certain provisions of the amended law of December 19, 2002 regarding the commercial and company register (hereinafter the “amendments”). The CNPD notes with satisfaction that it was informally consulted by the Ministry of Justice and by the Justice Commission prior to the submission of these amendments. Nevertheless, it should be noted that these exchanges concerned certain general principles of personal data protection, such as the right of access for the data subjects. These exchanges in no way exempt the Justice Commission from taking into account this opinion, which raises a number of important observations regarding the amendments. In light of the CJEU ruling of November 22, 2022, the CNPD emphasizes that it is crucial to find a balance between the protection of personal data, the right to privacy, and access for various actors to the RBE to effectively combat money laundering and the financing of terrorism, particularly by providing clear and predictable provisions for the data subjects in the draft law. By letter dated July 11, 2023, the Ministry of Justice invited the National Commission to express its opinion on the amendments.

2 Press release from the Ministry of Justice dated December 21, 2022:

<https://mi.gouvernement.lu/fr/actualites.gouvernement%2Bfr%2Bactualites%2Btoutes actualites%2Bcommuniqués%2B2022%2B12-decembre%2B21-acces-rbe.html>

3 Deliberation No. 26/AV13/2023 of March 31, 2023, Opinion of the National Commission for Data

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8. The CNPD notes that the amendments aim in particular to bring the provisions of the amended law of January 13, 2019 establishing a Register of Beneficial Owners (hereinafter the "RBE law") into compliance with the aforementioned ruling of the Court of Justice of the European Union and the provisions of the GDPR. Other amendments concerning the amended law of December 19, 2002 regarding the commercial and company register (hereinafter the "RCS law") are also proposed to take into account the opinions of the State Council and the CNPD.

AMENDMENTS TO THE AMENDED LAW OF JANUARY 13, 2019 ESTABLISHING A REGISTER OF BENEFICIAL OWNERS

1. Determination of the data controller

9. The National Commission notes with satisfaction that the amendments introduced in the new Article 5 of the RBE law respond to its observations made in its opinion of March 31, 2023. The new Article 5.2 now states: "The manager is the data controller within the meaning of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)."

10. The CNPD also notes in the commentary on the articles (under Amendment No. 23) that the Grand-Ducal regulation setting out the modalities for implementing access and consultation of the RBE will specify that for access by professional journalists, the Press Council will receive from LBR the necessary IT authorizations to grant access to professional journalists via the IT tool made available by LBR to the Press Council for this purpose. It then raises the question of the qualification of the Press Council as a processor, which would imply compliance with the conditions of Article 28 of the GDPR.

2. Purposes of processing personal data contained in the RBE

11. Article 2.3 of the draft law provides that data on beneficial owners are made available for the following purposes: a) in the context of the fight against money laundering and against the financing of terrorism; b) for statistical purposes; c) for scientific purposes; and d) for all other purposes determined by law.

5 Deliberation No. 26/AV13/2023 of March 31, 2023, Opinion of the National Commission for Data Protection regarding draft law No. 7961 [...], §§ 8-9

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A. Processing for Scientific and Statistical Purposes

12. According to the new Article 19ter (1st paragraph) introduced by the amendments, LBR may authorize "the provision to third parties of statistical data derived from the Register of Beneficial Owners, provided that such data does not allow for the identification of individuals registered in the Register of Beneficial Owners and that it is intended for statistical or scientific purposes." The 2nd paragraph of this provision states: "The manager requests the third party to ensure the non-disclosure of confidential data when providing this data. Data used for the production of statistics is considered confidential when it allows for the direct or indirect identification of a natural person or poses a risk of disclosing individual information. To determine whether a natural person is identifiable, all means that could reasonably be assumed to be used by a third party to identify that person are taken into account."

13. The CNPD believes that the wording adopted by these amendments appears ambiguous and

should be clarified to distinguish between pseudonymization or anonymization and to clearly indicate at what stage (before or after the provision of data to third parties) such measures should be implemented; otherwise, the provision does not provide any real legal added value. Indeed, Article 5.1.b) of the GDPR already provides that processing for scientific or statistical purposes is considered by the GDPR as not incompatible with the initial purposes (as rightly highlighted in the commentary on Article 30 of the draft law).

Article 65 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection provides a list of appropriate measures to be implemented by the data controller when processing personal data for scientific research or statistical purposes. Among the measures listed in this provision, one can notably retain anonymization or pseudonymization (3°) or the use of a functionally independent trusted third party from the data controller for the anonymization or pseudonymization of the data (4°).

14. The CNPD questions who will be responsible for the pseudonymization or anonymization of the data provided to third parties. In this regard, the CNPD recommends that the data be pseudonymized, or even anonymized, prior to any transfer to third parties. Therefore, the pseudonymization or anonymization of the data should fall to LBR or a trusted third party, and not to the third-party recipients of the data; otherwise, this guarantee cannot be considered effective.

15. Article 89 of the GDPR concerning the guarantees and exemptions applicable to processing for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes provides that "[e]ach time these purposes can be achieved by a means that does not allow for the identification of data subjects, the processing of personal data may be carried out."

6 Regarding the use of trusted third parties for pseudonymization or anonymization services, the CNPD refers to its developments in its Opinion of December 2, 2016, concerning draft law No. 7061 amending certain provisions of the Social Security Code (Parliamentary Document 7061/03, p. 4).
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Subsequent processing that does not allow or no longer allows the identification of the individuals concerned should be carried out in this manner. Therefore, data anonymization should be prioritized over pseudonymization whenever possible. The National Commission deems it necessary to remind that the anonymization process makes it impossible to (re)identify a person. It is, therefore, an irreversible process. In contrast, pseudonymization allows for the re-identification of a specific person through the use of additional information. This distinction is important: while the GDPR applies to pseudonymized data, anonymized data does not fall within the scope of the regulation. Recital 26 of the GDPR states in this regard that there is "no need to apply the principles relating to the protection of personal data to anonymous information, that is to say, information that does not relate to an identified or identifiable natural person, nor to personal data rendered anonymous in such a way that the data subject is not or no longer identifiable. This regulation, therefore, does not apply to the processing of such anonymous information, including for statistical or research purposes."

It is also important to take note of the case law regarding the interpretation of these concepts. A recent ruling from April 26, 2023, by the Court of Justice of the European Union (case T-557/20) sheds light on the distinction between pseudonymized data and anonymous data. It follows from this decision that the anonymous nature of a data point must be analyzed (i) from the perspective of the sole recipient of the data (the possibility for a third party to identify the person should therefore not be taken into account) and (ii) based on legal and practically feasible means available to the recipient to identify the individuals concerned.

The CNPD therefore believes that it should not be the responsibility of third parties (for example, a statistics institute or a research center) to carry out the pseudonymization or anonymization of personal data obtained from the data controller, while prioritizing anonymization, which would thus

avoid any application of the GDPR to these "third parties."

B. Processing for any other purposes determined by law

18. The new article 2.3°.d) providing for the availability of information on the beneficial owners of registered entities for any other purposes determined by law does not bring any real legal added value in terms of predictability or in terms of guarantees for the individuals concerned. The CNPD considers that this provision can be removed from the draft law insofar as the legislator can always provide for new processing and new purposes in a subsequent law without necessarily relying on such an "opening clause."

7 CJEU, judgment of April 26, 2023, *SRB v EDPS*, T-557/20, EU:T:2023:219 (it should be noted, however, that an appeal against this judgment is pending)

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The CNPD reminds, however, that it is not sufficient to provide for a new purpose in the law for the processing to be considered valid in relation to the GDPR or the Charter of Fundamental Rights of the European Union. It is also necessary for the processing to be necessary and proportionate in relation to the new purpose provided. The European Data Protection Supervisor has indicated: "measures that may prove useful for the given objective are not all desirable or can all be considered a necessary measure in a democratic society. It is not enough for the measure to be merely convenient or cost-effective."

19. It is in this context that Amendment No. 29 provides for the introduction of a new provision allowing the Ministry of Economy access to the RBE "within the framework of its specific competencies regarding the national screening of foreign direct investments that may threaten security or public order for the implementation of Regulation (EU) 2019/452 of the European Parliament and of the Council of March 19, 2019, establishing a framework for the screening of foreign direct investments in the Union." The CNPD refers in this regard to its opinions of March 4, 2022, and April 28, 2023, concerning Bill No. 7885 on the establishment of a national screening mechanism for foreign direct investments that may threaten security or public order for the purposes of Regulation (EU) 2019/452 of the European Parliament and of the Council of March 19, 2019, establishing a framework for the screening of foreign direct investments in the Union.

However, for the purpose of such access to be sufficiently determined and legitimate, it is necessary to ensure that the Ministry of Economy's access to the RBE is defined in a sufficiently clear and precise manner and in a way that complies with Regulation (EU) 2019/452. However, the conditions for access to the personal data of beneficial owners by the Ministry of Economy (for example, access to all or only certain data?) are not evident from the provision under review. The CNPD regrets that this new access envisaged, constituting a new processing, has not been further clarified by the authors of the bill, so it is not in a position to fully assess what the potential consequences could be from a data protection perspective.

20. The National Commission also wishes to draw the attention of the authors of the amendments to the possibility for any person with access to the RBE to extract all available data from the register in an automated manner and to reuse it for purposes other than those provided for by law ("web scraping"). The CNPD wonders whether technical means will be put in place to regulate this type of practice. Indeed, it follows from Article 25.2 of the GDPR that "[t]he controller implements appropriate technical and organizational measures to ensure that, by default, only personal data which are necessary for each specific purpose of the processing are processed."

8 European Data Protection Supervisor, Guide for the assessment of the necessity of measures limiting the fundamental right to the protection of personal data (April 11, 2017), page 18

9 Deliberation 6/AV6/2022 (parliamentary document 7885/02) and deliberation 33/AV19/2023 (parliamentary document 78885/05)

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This applies to the amount of personal data collected, the scope of its processing, its retention period, and its accessibility. In particular, these measures ensure that, by default, personal data is not made accessible to an indeterminate number of natural persons without the intervention of the data subject” (principle of data protection by design). A web scraping practice could, for example, lead to the publication of all the data contained in the RBE (which would effectively resemble public access to the RBE, which has precisely been censored by the CJEU). In this regard, the CNPD reminds that the CJEU has indicated that “the potential consequences for the data subjects resulting from any potential misuse of their personal data are aggravated by the fact that, once made available to the general public, this data can not only be freely consulted but also stored and disseminated, making it increasingly difficult, if not illusory, for these individuals to effectively defend themselves against abuses.”

3. Regarding the processed data

A. Data accessible to recipients

21. According to the new Article 12.1, first paragraph, of the RBE law, “[t]he persons referred to in Article 11, paragraph 1 points 1 to 3 and 5, and paragraph 2 points 1, 2, and 4 have access to information concerning all persons or entities referred to in Article 1.” The CNPD notes that national authorities, professionals, self-regulatory bodies, state services, public administrations and public establishments, professional journalists, national civil society organizations, and national authorities and administrations involved in the fight against offenses related to money laundering or the financing of terrorism have access to all information concerning all persons or entities referred to in Article 1. The reference to Article 1 is not clearly understandable for the national Commission. Is it an access to information concerning all registered entities and all beneficial owners, in which case it is appropriate to refer to Article 1 (3°) and (4°)? The CNPD also questions the modalities of searching in the RBE (searching by the name of the beneficial owner or by the registered entity's name?). It wonders whether the search criteria will be adapted in the Grand-Ducal Regulation of February 15, 2019, relating to...

CJEU, judgment of November 22, 2022, WM (C-37/20), Sovim SA (C-601/20), EU:C:2022:912, paragraph 43

See also European Court of Human Rights (Grand Chamber), judgment of June 27, 2017, Case Satakunnan Markkinapörsi Oy and Satamedia Oy v. Finland (Application No. 931/13), paragraph 175: “[...] the existence of a general interest in making large quantities of tax data accessible and in allowing the collection of such data does not necessarily or automatically mean that there is also a general interest in disseminating such raw data en masse, as is, without any analytical contribution.”

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Regarding the registration, payment of administrative fees, and access to information recorded in the Register of Beneficial Owners.

22. The new Article 12.1, 2nd paragraph, of the RBE law states: “Other persons referred to in Article 11 have limited access to the information of only those legal persons and entities that are the immediate subject of their inquiries or, in the cases of the persons referred to in paragraph 2 point 4, with whom they are likely to conclude transactions.” The CNPD understands that this refers to persons who wish to know the identity of the beneficial owners of a given company or entity because they are likely to conclude transactions with them, as well as any other persons who demonstrate a legitimate interest in the context of the fight against money laundering and the financing of terrorism who should be covered here. The National Commission then wonders whether the reference to Article 11,

paragraph 2 point 4, is accurate or whether it would be more appropriate to refer to Article 11, paragraph 2 point 3?

23. According to the new Article 12.2, 1st paragraph, of the RBE law, “access is open for each person or entity to the following information: 1° for the persons referred to in Article 11, paragraph 1 point 1 to all the information referred to in Article 3.” The CNPD understands that national authorities therefore have access to all information relating to a beneficial owner listed in the RBE.

24. According to the new Article 12.2, 2nd paragraph, of the RBE law, “other persons” have access “to the information referred to in Article 3, paragraph 1, points 1° to 8°, 12° and 13°.” The CNPD understands that any other person or entity that is not a national authority will therefore have access to the name, first name(s), nationality(ies), day of birth, month of birth, year of birth, place of birth, country of residence, nature and extent of the beneficial interests held (as was the case with the previously established regime for public access to the RBE). These persons or entities will not have access to the precise private address or professional address and the national or foreign identification number of the beneficial owner.

25. The CNPD recalls that according to Article 5.1.e) of the GDPR, only data that is adequate, relevant, and necessary for the purposes pursued by the data controller should be collected (data minimization principle). The CNPD welcomes such a provision limiting access to personal data by actors other than national authorities, given the importance of the data minimization principle as well as the principles of proportionality and necessity, according to which any processing of personal data must be proportionate to the objectives to be achieved, taking into account the risk that the processing poses to the privacy of the individuals concerned.

****B. Regarding the accuracy of the data contained in the RBE****

26. The amendments introduce a new paragraph 1 in Article 9 of the RBE law: “The manager of the register of beneficial owners monitors the data recorded and may...”

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to request from the registered entity any document or piece of evidence that allows for the justification of the accuracy of an entry. Thus, this gives a proactive role to LBR in verifying the accuracy of the data registered in the RBE.

This amendment directly responds to the principle of accuracy provided for in Article 5.1.d) of the GDPR, which states that personal data must be accurate and, where necessary, kept up to date. This provision further stipulates that all reasonable measures must be taken to ensure that personal data which is inaccurate, in relation to the purposes for which it is processed, is erased or rectified without delay.

According to the commentary on the article, “[i]n the context of its missions, the manager of the RBE must ensure the accuracy of the data registered. To this end, it has a priori control, which is exercised at the time of the submission of a deposit request, as prescribed in Article 7 of the law. Thus, before the insertion of the communicated data into the database of the trade and companies register, these are verified by the manager who can already at this stage request additional supporting documents. The new first paragraph, inserted into the first paragraph, aims to allow the manager, in the context of a posteriori control of the database, to contact a registered entity to ensure that the information registered is still correct and to be able to request a complementary document justifying the registration. This will allow for the correction of any errors that the manager may not have identified during its a priori control.”

However, it is not clearly stated in the explanations provided by the authors of the draft law whether the

reference to “any document or piece of evidence that allows for the justification of the accuracy of an entry” refers to the supporting documents mentioned in Article 4.3 of the RBE law and listed in Article 5 of the Grand-Ducal Regulation of February 15, 2019, concerning the modalities of registration, payment of administrative fees, as well as access to the information registered in the Register of Beneficial Owners.

Furthermore, the National Commission notes with satisfaction the introduction, in the new Article 16-2.1, of the amendment proposed in its initial opinion which allows for the clarification of the purposes of interconnection: “In the context of the respective missions of the manager of the trade and companies register and the Register of Beneficial Owners, the files of the Register of Beneficial Owners are interconnected with the database of the trade and companies register.”

The CNPD also welcomes the clarification in the comments stating that: “It should be noted that the RBE will be interconnected only with the RCS. Conversely, the RCS is interconnected not only with the RBE but also with the RESA.”

Regarding the manager's right of access to the information contained in the files of public administrations and services provided for in the new Article 16-2.1, the Commission 12 Deliberation No. 26/AV13/2023 of March 31, 2023, Opinion of the National Commission for Data Protection regarding draft law No. 7961 [...] (§57)

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national note the addition of the following amendment: “This access is limited to the data of individuals registered in the commercial register for the purpose of verifying the accuracy of the data to be provided under Chapter 3 of this law. A Grand-Ducal regulation shall strictly define the list of files of the relevant administrations and public services as well as the type of information to which the manager must have access.” The CNPD notes that “[t]he proposed provision will refer to a Grand-Ducal regulation that will precisely establish a restrictive list of the data and databases concerned.” (commentary on the articles).

For the remainder and more generally regarding the quality of the data recorded in the RBE, the National Commission refers to the observations made in its initial opinion of March 31, 2023.

C. Regarding access and the modalities for searching data in the RBE

31. The National Commission welcomes the introduction, with the new article 13.26/s., of security measures allowing for the logging of all individuals accessing the RBE: “The computer system through which access to the Register of Beneficial Owners by persons other than those referred to in paragraph 2 is operated must be arranged so that access to the files is secured through strong authentication, that information relating to the person who conducted the consultation, the information consulted, the date, time, and reference of the file within which the consultation was made, as well as the precise reason for the consultation can be traced. The log data must be retained for a period of five years from their recording, after which they are deleted.” The CNPD believes that this type of measure constitutes essential safeguards to frame access to the register by various actors in accordance with data protection legislation and to contribute to the balance between the legitimate objective of combating money laundering and the fundamental rights of the individuals concerned.

4. Recipients of the processing who demonstrate a legitimate interest in the fight against money laundering and the financing of terrorism

32. The amendments distinguish several categories of persons demonstrating a legitimate interest in consulting the RBE:

professional journalists within the meaning of the amended law of June 8, 2004, on freedom of expression in the media (new article 11.2 1°);

13 Deliberation No. 26/AV13/2023 of March 31, 2023, Opinion of the National Commission for Data Protection regarding draft law No. 7961 [...] (III. On the “quality of the data recorded”)

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****National organizations of civil society****, established in the form of non-profit associations or foundations, having a link to the prevention and fight against money laundering and the financing of terrorism (new article 1 1.2 2°);

****Individuals who wish to know the identity of the beneficial owners**** of a given company or entity because they are likely to enter into transactions with them (new article 1 1.2 3°);

****National authorities and administrations involved in the fight against offenses related to money laundering or the financing of terrorism****, insofar as they do not already have access to the information in question based on paragraph 1 points 1°, 2° or 5° of this article (new article 11.2 4°); and

****All other individuals who demonstrate a legitimate interest**** in the context of the fight against money laundering and the financing of terrorism (new article 11.1 4°).

A. ****Professional Journalists****

33. The infringements on the right to privacy that access to the Register of Beneficial Owners entails aim to enable professional journalists to access data, collect it, and process it so that they can carry out their journalistic activities (which contribute to the public's right to be informed), which are recognized as essential in a democratic society. In its judgment "Sovim" of November 22, 2022, the Court specified: "Indeed, insofar as this recital states that public access to information on beneficial owners allows for increased scrutiny of information by civil society and explicitly mentions, in this regard, the press and civil society organizations, it should be noted that both the press and civil society organizations linked to the prevention and fight against money laundering and the financing of terrorism have a legitimate interest in accessing information on beneficial owners. [...]"

34. The CNPD notes that a "Grand-Ducal regulation will specify in particular that for the access of professional journalists, the Press Council will receive from the LBR the necessary IT authorizations to grant access to professional journalists via the IT tool made available by the LBR to the Press Council for this purpose." (commentary on the new article 36, amendment no. 22). It understands that the Press Council will have access to the RBE application as the account manager (in order to grant or revoke consultation access to the RBE for the journalists it accredits who hold a Luxembourg press card) and that these journalists will have access as users of the account.

14 Recital 30 of Directive 2018/843: "Public access to information on beneficial owners allows for increased scrutiny of information by civil society, including the press or civil society organizations, and contributes to preserving trust in the integrity of business transactions and the financial system. It can help combat the abusive use of companies and other legal entities and legal constructions for the purposes of money laundering or the financing of terrorism, both by facilitating investigations and through reputational considerations, to the extent that anyone likely to enter into transactions knows the identity of the beneficial owners [...]."

15 CJEU, judgment of November 22, 2022, WM (C-37/20), Sovim SA (C-601/20), EU:C:2022:912, paragraph 74

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35. While journalists are free to choose from the information they have access to in the RBE, which ones they will process, and how they will do so, this freedom is not without responsibilities. The CNPD reminds that any dissemination of personal data obtained through the access of professional journalists to the RBE must contribute to a debate of general interest (here, in the context of the fight against money laundering and the financing of terrorism) and not merely satisfy the curiosity of a certain readership outside the purposes for which the RBE was established.

B. Other persons demonstrating a legitimate interest in the fight against money laundering

36. To the extent that the new article 11.2 of the draft law indicates that persons with a legitimate interest include those listed in this provision, the CNPD understands that such a list is not exhaustive. It will be up to LBR to determine on a case-by-case basis the existence of a legitimate interest in the context of preventing the use of the financial system for money laundering or the financing of terrorism. According to the new article 15.3 of the draft law, LBR must rely "on the opinion of an advisory committee that takes into account any relevant circumstances that may indicate whether access to the information is requested in the context of preventing the use of the financial system for money laundering or the financing of terrorism" and will take into account "the protection of the fundamental rights of individuals, including the right to privacy and the right to the protection of personal data in its decision-making."

Despite the concrete examples of persons demonstrating a legitimate interest listed by the amendments and the establishment of an advisory committee to assess the existence of a legitimate interest, the National Commission regrets the absence of a definition of legitimate interest (at the national or European level), which risks being interpreted heterogeneously by the various authorities and courts tasked with overseeing the application of this notion. Such a definition would undoubtedly contribute to the predictability required on the part of the concerned individuals and would also be necessary to assess the proportionality of such access to the RBE with the rules on data protection.

37. The CNPD, however, notes with satisfaction that the request for access by any other person demonstrating a legitimate interest is framed by the new article 15ib/s of the draft law, which stipulates that their request "may only concern a limited number of legal persons or entities per request and may only relate to a search by registration number or name" and that it specifies "the basis of the request and the purposes for which access to the information is requested," thus avoiding any type of "fishing expeditions."

16 European Court of Human Rights (Grand Chamber), judgment of June 27, 2017, Case Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland (Application No. 931/13), paragraph 186.

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5. Rights and Limitations of the Rights of Data Subjects

38. Although a limitation is provided for in the amendments made by the authors of the draft law, the CNPD wishes to first remind the applicable principles and case law regarding the right of access. Understanding these principles is particularly important as it should enable the legislator to draft the provisions that foresee a limitation on the right of access based on Article 23 of the GDPR (which requires a legislative measure for this type of exception) with sufficient precision, as recommended by the CEPD in its guidelines regarding limitations based on Article 23 of the GDPR¹⁷. The CNPD reminds that pursuant to Recital 41 of the GDPR, "[W]hen this Regulation refers to a legal basis or a legislative measure, this does not necessarily mean that the adoption of a legislative act by a parliament is required, without prejudice to the obligations laid down under the constitutional order of the Member State concerned. However, this legal basis or legislative measure should be clear and precise, and its application should be predictable for the subjects of law [...]".

A. Reminder of the Principles Regarding the Right of Access to Information Related to the Consultation Operations Concerning the Personal Data of the Beneficial Owner

39. Article 15.1 of the GDPR states that "[t]he data subject has the right to obtain from the controller confirmation as to whether or not personal data concerning him or her is being processed, and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed,

in particular recipients in third countries or international organizations;
d) where possible, the envisaged duration of storage of the personal data or, where that is not possible, the criteria used to determine that duration;
[...].”

The CJEU interprets this provision very broadly, resulting in a very wide scope of information that the controller must provide to the data subject.

17 European Data Protection Board, Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021 (see 3.2 “Legislative measures establishing limitations and the necessity for them to be predictable,” paragraphs 16 and following.)

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This can be explained in particular by the fact that the latter must not only be able to verify the accuracy of the data but must also be able to ensure that its data is processed lawfully. To this end, any data subject should have the right to know and to be informed, in particular, of the purposes of the processing of their personal data, if possible the duration of the processing, the identity of the recipients of this data, as well as the logic underlying their processing.

40. In a judgment dated June 22, 2023, the CJEU had the opportunity to rule on operations involving the consultation of personal data. It follows from this decision that such operations constitute processing within the meaning of Article 4.2 of the GDPR, so that these operations grant the data subject, under Article 15.1 of the GDPR, not only a right of access to this personal data but also a right to be provided with information related to these consultation operations, as mentioned in this latter provision. The CJEU thus ruled that information relating to the consultation operations of a person's personal data, concerning the dates and purposes of these operations, constitutes information that this person has the right to obtain from the data controller under Article 15.1 of the GDPR. However, the Court specified that Article 15.1 of the GDPR does not establish such a right regarding information related to the identity of the employees of the said controller who carried out these operations under its authority and in accordance with its instructions, unless such information is essential to enable the data subject to effectively exercise the rights conferred upon them by the GDPR and provided that the rights and freedoms of these employees are taken into account.

41. LBR, acting as the data controller, should therefore, in principle (and in the absence of a limitation provided by law), respond to the access request of a beneficial owner concerning the consultation operations by persons having access to the RBE and communicate the dates and reasons for the consultation of the RBE.

42. Regarding the disclosure of the identity of the individuals who consulted the RBE in the context of an access request, it is first necessary to recall the definition of "recipient" in Article 4.9 of the GDPR: "the natural or legal person, public authority, service, or any other body that receives communication of personal data, whether or not a third party. However, public authorities that are likely to receive communication of personal data in the context of a specific investigation mission in accordance with Union law or the law of a Member State are not considered recipients; the processing of such data by public authorities..."

18 CJEU, judgment of January 12, 2023, Österreichische Post, C-154/21, EU:C:2023:3, paragraph 37;
CJEU, judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 34

19 "A data subject should have the right to access personal data that has been collected about them and to exercise this right easily and at reasonable intervals, in order to be aware of the processing and to verify its lawfulness. [...] Consequently, any data subject should have the right to know and to be informed, in particular, of the purposes of the processing of personal data, if possible the duration of the processing of this personal data, the identity of the recipients of this personal data, the logic underlying any automated processing, and the consequences that such processing may have, at least

in the case of profiling." (Recital 63 of the GDPR).

20 CJEU, judgment of June 22, 2023, Pankki S, C-579/21, EU:C:2023:501, paragraph 61

21 CJEU, judgment of June 22, 2023, Pankki S, C-579/21, EU:C:2023:501, paragraph 83

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43.

44.

The matter in question complies with the applicable data protection rules based on the purposes of the processing. Therefore, any national authority as defined in Article 1, 5°) of the RBE law consulting the RBE in the context of an investigation mission related to the fight against money laundering and the financing of terrorism is not considered a recipient in the sense of the GDPR and will not need to be mentioned in the response to a request for access by a beneficial owner.

Regarding the reference to recipients in the context of a request for access, it should be considered that the information provided to the data subject under the right of access provided for in Article 15, 1, e) of the GDPR must be as accurate as possible. The CJEU has thus ruled:

"43. [...] it should be considered that the information provided to the data subject under the right of access provided for in Article 15, paragraph 1, point e), of the GDPR must be as accurate as possible. In particular, this right of access implies the possibility for the data subject to obtain from the data controller information about the specific recipients to whom the data has been or will be communicated or, alternatively, to choose to limit the request to information regarding the categories of recipients." If the data subject has not decided otherwise, the data controller must indicate the specific recipients, unless it is impossible to identify these recipients or if the data controller demonstrates that the data subject's request for access is manifestly unfounded or excessive within the meaning of Article 12, 5 of the GDPR.

The National Commission deduces from the recent interpretations given by the CJEU to Article 15 of the GDPR that a beneficial owner could in principle (and in the absence of a limitation provided by law) request from the LBR communication of the identity of the persons who have consulted their data in the RBE. This could be reflected, in the context of the response to a request for access, by the designation of a national authority listed in Article 1, 5°) of the RBE law, a state service, an administration, or a public establishment not acting within the framework of a specific investigation mission; by the communication of the corporate name of the professional or financial institution; the designation of a self-regulatory body listed in Article 2-1 of the law of November 12, 2004, relating to the fight against money laundering and the financing of terrorism, or even of the person demonstrating a legitimate interest. However, the CNPD specifies that the identity of the natural person employed within the aforementioned structures and who has consulted the RBE under their authority and in accordance with their instructions does not need to be communicated.

Nevertheless, the right to the protection of personal data is not an absolute right; therefore, limitations on the right of access of the beneficial owner may be implemented.

22 CJEU, judgment of January 12, 2023, Österreichische Post, C-154/21, EU:C:2023:3, point 43

23 EDPB Guidelines 01/2022 on data subject rights - Right of access, Version 2.0, Adopted on March 28, 2023 (point 117)

24 Recital 4 of the GDPR

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B. Limitations on the Right of Access of Beneficial Owners

45.

It follows from the comments on Articles 19ter and 19quater that, given the sensitivity of the subject

and the obligation imposed on the manager by Article 13.3 not to disclose to the registered entity or a beneficial owner information regarding consultations conducted by national authorities, self-regulatory bodies, individuals demonstrating a legitimate interest, professional journalists, national civil society organizations, other financial institutions, and national authorities, a restriction on the right of access is provided for in accordance with Article 23 of the GDPR, particularly under letters d), g), h), and i) of paragraph 1.

46.

The CNPD notes with satisfaction the reference to Article 23 and its various conditions of application by the authors of the draft law in the commentary on the articles. It recalls in this regard that the EDPS has adopted guidelines concerning the application of Article 23 of the GDPR. These guidelines specify, in particular, that supervisory authorities must be consulted before the adoption of such measures and that they must be able to monitor their application.

47.

The new Article 19quater introduced by the amendments states:

“(1) In the context of exercising the right of access of the data subject provided for in Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), any request from the data subject is addressed to the manager, except for requests relating to consultations and information provided for the persons and entities referred to in Article 13, paragraph 3, which are processed in accordance with paragraph 2.

(2) Without prejudice to the provisions of Article 13, paragraph 3, the right of access of any registered entity or any beneficiary registered in the Register of Beneficial Owners is deferred and limited in that it cannot concern consultations of the information contained in the Register of Beneficial Owners carried out by entities or persons referred to in Article 13, paragraph 3, or the communication of information by them to the manager in accordance with Article 8, paragraph 1.

Subject to this reservation, access must be exercised in the cases referred to in the previous paragraph through the National Commission for Data Protection, which, after having exercised this right of access, confirms having done so without providing further details.”

25 European Data Protection Board, Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021

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(3) The manager provides on its website all information regarding the exercise of the right of access and its limitations.

The limitation on the right of access of the beneficial owner provided for in this provision is to be linked with the prohibition of "tipping-off" as stipulated in Article 13.3 of the RBE law. No information concerning the consultation of data by national authorities, national self-regulatory bodies, or individuals demonstrating a legitimate interest (including professional journalists, national civil society organizations, and national authorities and administrations) should indeed be communicated to registered entities and beneficial owners.

The CNPD understands from the commentary on Article 19quater that the measure limiting the right of access of the concerned individuals registered in the RBE would constitute a necessary and proportionate measure to ensure:

- "the prevention and detection of criminal offenses, as well as investigations and prosecutions in this regard or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats" (Article 23.1.d) GDPR);
- "the prevention and detection of breaches of the ethics of regulated professions, as well as investigations and prosecutions in this regard" (Article 23.1.g) GDPR);
- "a mission of control, inspection, or regulation related, even occasionally, to the exercise of public

authority, in the cases referred to in points a) to e) and g) (Article 23.1.h) GDPR);
- "the protection of the concerned individual or the rights and freedoms of others" (Article 23.1.i) GDPR).

48. The National Commission regrets that the link between the limitations provided and the various objectives mentioned above is not clearly expressed in the draft law or at least in the explanatory memorandum or the comments on the articles, as recommended by the EDPS. In the absence of such clarifications, it is difficult to assess whether the limitation of the right of access of beneficial owners constitutes a necessary and proportionate measure to ensure all four previously mentioned objectives.

49. The CNPD notes that in certain cases, the communication of information to the concerned individuals being the subject of an investigation could compromise the success of an investigation, thus making it necessary to limit certain rights of the concerned individuals based on Article 26. European Data Protection Board, Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021, paragraph 19: "This link between the limitations provided and the objective pursued should be clearly established and demonstrated in the relevant legislative measure or in supplementary documents. [...]"

27 Cf. section 3.5 "Assessment of Necessity and Proportionality" in the Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021.

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23. 1.d) of the GDPR (the EDPS having indicated that this is particularly relevant in the context of the fight against money laundering)²⁸.

The CNPD also understands that in certain cases, access by the beneficial owner to the information that a journalist has consulted their data could compromise a planned publication, constitute a prior control measure before the publication of an article, or even endanger the journalist who could then become the target of intimidation or threats²⁹. Such access could therefore harm the role of the press, which contributes to the fight against money laundering, as journalistic investigations are conducted and allow for increased scrutiny of beneficial owners through reputational considerations.

50.

It follows from paragraph 2 of Article TQquater that "[...] the right of access of any registered entity or any beneficial owner registered in the Register of beneficial owners is deferred and limited [...]".

The national commission struggles to grasp the meaning of deferred access. Does this wording mean that access can only be requested once the data has been used in a publication by a professional journalist or as soon as such a right is no longer likely to compromise the success of an investigation?

51. The CNPD notes that the limitation of the right of access for beneficial owners essentially consists of a limitation on the categories of data to which the concerned person may request access (no access to the identity of certain recipients; national authorities, self-regulatory bodies, persons demonstrating a legitimate interest, professional journalists, national civil society organizations, other financial institutions, and national authorities) and to the information related to these consultation operations, such as the dates and purposes of the consultation operations. Regarding national authorities, the CNPD emphasizes that when they consult personal data in the RBE as part of a specific investigation mission provided for by law, they are not to be classified as recipients and are therefore not subject to the right of access³⁰.

52. According to the commentary on Articles 19ter and TQquater, the legislative measure proposed here would comply with the conditions of Article 23.2 of the GDPR. The provision under review should thus include specific provisions relating to the purposes or categories of processing, the categories of personal data, the extent of the limitations introduced, the safeguards intended to prevent abuse or illegal access or transfer, the determination of the data controller, the retention periods, the risks to the rights and freedoms of the concerned persons, and the right of the concerned persons to be informed of the limitation.

28 European Data Protection Board, Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021 (paragraph 24)

29 Cf. opinion of the Press Council of June 27, 2023

30 Article 15.1.d only refers to "the recipients or categories of recipients to whom the personal data have been or will be communicated".

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53.

Regarding the purposes or categories of processing, it is important to understand that this refers to specifying why the right of access of the data subject is limited (not the purposes of processing in general as indicated in the commentary on the articles). The provision under review must be understandable for the individuals to whom it applies, which implies a clear understanding of how and when the limitation applies.

54.

Concerning the categories of data, the EDPB had the opportunity to clarify that these are the categories of data covered by the limitation (not the categories of data collected as indicated in the commentary on the articles).

55.

Regarding the safeguards intended to prevent abuse or unlawful access or transfer, the National Commission notes its involvement in the mechanism of the indirect right of access for data subjects. The control to be carried out by the CNPD will be facilitated by the provision of logging data, as listed in the new Article 13.2bis (identity of the person who accessed the data, information accessed, date of access, time of access, reference of the file in the context of which the access was made, as well as the precise reason for the access).

56.

The National Commission then suggests reformulating Article 19quater (2) and (3) as follows:

(2) Requests for the exercise of the right of access by any beneficiary registered in the Register of Beneficial Owners are limited in that they cannot concern information on the recipients referred to in Article 13 paragraph 3 who have accessed their personal data. The access request may also not concern information related to the consultation operations by these recipients of the personal data of a beneficial owner, regarding the dates and purposes of these operations or the communication of information by these recipients to the manager in accordance with Article 8 paragraph 1.

Subject to this reservation, access must be exercised in the cases referred to in the previous paragraph through the National Commission for Data Protection, which exercises this right of access to conduct useful investigations, particularly regarding the legality of the processing.

When the right referred to in paragraph 2 is exercised, the CNPD informs at least the data subject that it has carried out all necessary verifications or.

31 European Data Protection Board, Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021 (paragraphs 49-51)

32 European Data Protection Board, Guidelines 10/2020 on limitations under Article 23 of the GDPR, Version 2.1, adopted on October 13, 2021 (paragraph 53)

33 Cf. CJEU, judgment of June 22, 2023, Pankki S, C-579/21, EU:C:2023:501: "It follows from the considerations above that Article 15(1) of the GDPR must be interpreted as meaning that information relating to operations of consultation of a person's personal data, concerning the dates and purposes of those operations, constitutes information that that person has the right to obtain from the data controller under that provision." (point 83)

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to an examination. The CNPD also informs the data subject of their right to file a judicial appeal³⁴.

(3) The data controller provides on its website all information regarding the exercise of the right of access and its limitations. The data controller specifically informs the data subject of the possibility to exercise their rights through the CNPD in accordance with paragraph 235.

57. It is also reminded that the mechanism of indirect access is subject to judicial review where the judge must be aware of all the reasons and evidence on which the CNPD based, in this context, the verification of the lawfulness of the data processing in question as well as the conclusions drawn from it. The data controller must also, for any direct access request that is denied, record the factual or legal reasons on which it bases the decision to limit, in whole or in part, the access rights of the data subject, and this information must be made available to the CNPD³⁶.

II.

AMENDMENTS TO THE MODIFIED LAW OF DECEMBER 19, 2002 CONCERNING THE COMMERCIAL REGISTER AND COMPANIES

1. The purposes of processing personal data contained in the RCS

58.

The new Article 1 of the RCS law states that the provision of this information to the public and to public administrations and institutions is intended:

“a) for informational purposes

b) in the context of the fight against money laundering and against the financing of terrorism;

c) for statistical purposes;

d) for scientific purposes; and

e) for any other purposes determined by law.”

34 See similar provisions in Article 16 of the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security.

35 See similar provisions in Article 16 of the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security.

36 See CJEU, judgment of November 16, 2023, *Ligue des droits humains ASBL*, C-333/22, EU:C:2023:874 concerning the right to indirect access in Directive (EU) 2016/680 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of preventing and detecting criminal offenses, investigations, and prosecutions in this matter or the execution of criminal sanctions (points 63 to 70).

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59.

The National Commission believes that the purpose of the information is not explicit and should be further clarified.

60.

Regarding the processing of data from the RCS for statistical, scientific, and any other purposes determined by law, the CNPD refers to its previous observations made in the context of the RBE law (II. The purposes of processing personal data contained in the RBE, paragraphs 12 and following).

61.

Furthermore, it emerges from the commentary under amendment no. 17 that “[t]he automated monitoring of the content of the RCS database, which will allow for the detection of entities potentially in breach of their filing and publication obligations, is one of the examples of cross-cutting processing that the manager will carry out. Also mentioned is the comparison of individuals registered in the RCS against the sanctions lists issued by the European Union or the United Nations.” The CNPD understands that for a concerned individual registered in the RCS, this type of processing could be

subject to an automated individual decision and will then be subject to the conditions of Article 22 of the GDPR insofar as a decision based exclusively on this processing could produce legal effects or significant effects for the concerned individual. Article 22.1 of the GDPR provides that a “data subject has the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or her.” Exceptions to this right are provided, notably when the decision “is authorized by Union law or the law of the Member State to which the controller is subject and which also lays down appropriate measures to safeguard the rights and freedoms and legitimate interests of the data subject” (Article 22.2 of the GDPR).

2. Data processed in the RCS

62.

It emerges from amendments no. 3 and no. 4 in the draft law that for any registration of a natural person trader or a branch of a natural person trader, the latter will have the option to indicate information related to gender for statistical purposes. The same will apply for the registration in the RCS of partners, legal representatives, persons responsible for auditing accounts, liquidators, fund managers, domiciliary agents, depositaries, permanent representatives (amendment no. 9). It is also provided that if such personal data is provided by the concerned individual, it will not appear on the public site or on the extracts. Furthermore, processing for statistical purposes can only take place if the data relating to the gender of the concerned individual is anonymized.

63. The CNPD takes note of the explanations from the authors of the amendments regarding the purpose of processing this data, namely the verification of the implementation of gender equality policies and more specifically to allow the restoration of statistics regarding the compositions of the management/administration bodies of companies and other entities registered in the RCS.

The National Commission welcomes the establishment of these various guarantees framing the processing of this data (the optional nature of the communication of the data, anonymization, absence of publication). It refers to its previous developments on anonymization and specifies that such a measure should be implemented before the transfer of the data to any potential recipient who will process this data for statistical purposes.

3. Regarding the principle of data accuracy and the mechanism for updating information registered in the RCS

The CNPD notes with satisfaction certain clarifications provided by the amendments to the provisions aimed at enhancing the quality of the information to be registered or registered in the RCS. In its initial opinion, the CNPD had recommended that the mechanism for automatic updating be clarified and that the registers to be consulted in order to enhance the quality of the information to be registered or registered in the RCS be expressly named in the provisions of the draft law. It takes note that a Grand-Ducal regulation will limitatively set the list of files of administrations and public services as well as the type of information to which the manager must have access (new Article 15-1 (2), 2nd paragraph) and welcomes the clarifications provided in the commentary on the provision.

Regarding the introduction of the new Article 19-6(1) concerning the monitoring of data registered by LBR, the CNPD refers to its observations made for the RBE law in paragraphs 25 and following of this opinion (2. Regarding the accuracy of the data contained in the RBE).

66.

For the rest, the CNPD reiterates its observations made in its opinion of March 31, 2023.

37 Deliberation no. 26/AV13/2023 of March 31, 2023, Opinion of the National Commission for Data Protection regarding draft law no. 7961 [...], §§ 37-40

38 Deliberation no. 26/AV13/2023 of March 31, 2023, Opinion of the National Commission for Data Protection regarding draft law no. 7961 [...] (III. On the “quality of registered data”)

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Thus adopted in Belvaux on December 15, 2023.

The National Commission for Data Protection

'^.,.^7^../

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